CHAPTER 63 State Information Commission

The Right to Information Act of 2005 provides for the creation of not only the Central Information Commission but also a State Information Commission at the state level. Accordingly, all the states have constituted the State Information Commissions.

The State Information Commission is a high-powered independent body which interalia looks into the complaints made to it and decide the appeals. It entertains complaints and appeals pertaining to offices, financial institutions, public sector undertakings, etc., under the concerned state government.

Composition

The Commission consists of a State Chief Information Commissioner and not more than ten State Information Commissioners[1]. They are appointed by the Governor on the recommendation of a committee consisting of the Chief Minister as Chairperson, the Leader of Opposition in the Legislative Assembly and a State Cabinet Minister nominated by the Chief Minister[2]. They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory. They should not hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

Tenure And Service Conditions

The State Chief Information Commissioner and a State Information Commissioner shall hold office for such term as prescribed by the Central Government or until they attain the age of 65 years, whichever is earlier. They are not eligible for reappointment[3].

The Governor can remove the State Chief Information Commissioner or any State Information Commissioner from the office under the following circumstances:

1. if he/she is adjudged an insolvent; or
2. if he/she has been convicted of an offence which (in the opinion of the Governor) involves a moral turpitude; or
3. if he/she engages during his/her term of office in any paid employment outside the duties of his/her office; or
4. if he/she is (in the opinion of the Governor) unfit to continue in office due to infirmity of mind or body; or
5. if he/she has acquired such financial or other interest as is likely to affect prejudicially his/her official functions.

In addition to these, the Governor can also remove the State Chief Information Commissioner or any State Information Commissioner on the ground of proved misbehaviour or incapacity[4]. However, in these cases, the Governor has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the Governor can remove him.